

Memorandum on Penetration Testing Applicability
[REDACTED] IT157 Ethical Hacking
2026-04-27

Per request, this memorandum covers principal legal risks of penetration testing (pentesting) as well as how to mitigate liability via 'Indemnification'. My analysis draws from the federal Computer Fraud and Abuse Act (CFAA), 18 U.S.C. § 1030 and Washington State's RCW 9A.90.

The five illegal actions I cover would occur should a pen tester not secure 'authorization'.

Action 1 — Unauthorized Access to a Protected Computer

CFAA § 1030(a)(2): A pentester accessing a protected computer such as government databases without authorization to obtain information.

RCW 9A.90.040: Similarly, a pentester circumventing security logins to a government agency database is a felony under Washington law.

Action 2 — Computer Fraud (Access with Intent to Deceive)

CFAA § 1030(a)(4): A Pentester without authorization with intent to defraud across interstate lines is a federal crime.

RCW 9A.90.080: Washington law also criminalizes altering data or introducing malicious code by any pentester regardless of the interstate line.

Action 3 — Intentional Damage to Computer Systems

CFAA § 1030(a)(5)(A): A pentester transmitting code like a DDoS attack that causes damage to a federal database in excess of \$5000 would be a felony.

RCW 9A.90.060: Washington also criminalizes said pentester causing an interruption or suspension of access to a data network or service such as a DDoS attack mentioned earlier.

Action 4 — Trafficking in Passwords and Access Credentials

CFAA § 1030(a)(6): A pentester who traffics passwords that enable unauthorized computer access is a federal crime.

RCW 9A.90.070 & 9A.90.030: Washington instead criminalizes knowingly transmitting another person's identifying information to gain unauthorized access where as passwords are included.

Action 5 — Spoofing and Misrepresentation of Identity

CFAA § 1030(a)(2): A pentester IP spoofing to impersonate a trusted system constitutes unauthorized access such as a man in the middle attack would be a federal crime.

RCW 9A.90.080: Washington's tampering statute instead covers the introduction of falsified identifying data similarly to action 2 discussed.

There are a couple distinctions as noted above; however, I would argue federal CFAA is intent based while Washington RCW is focused on the act of circumvention. In *Van Buren v. United States*, 593 U.S. 374 (2021), the Supreme Court was able to define the federal distinction of intent regardless of authorized access of a uniformed patrol officer. Thus, Sgt. Van Buren committed a federal crime instead of a state crime had this act taken place in Washington state.

In conclusion, I urge the reader of this memo to seek a signed, notarized Indemnification agreement. This written agreement between the parties would thus accept legal responsibility for authorized test activities and holds the pentester harmless from resulting claims by the legal Please note this document needs 4 things: explicit scope, rules of engagement, and emergency legal contacts, and legal witnesses in addition to a notary. Should a 'hacker' or pentester crash a 'protected system's' server, they would need to be prepared to explain how they acted within all explicit scope and rules of engagement to avoid being charged with a felony.

Res ectfull ,

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